

**BEFORE THE
FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

DOCKET NO. 08-03

MAHER TERMINALS, LLC

COMPLAINANT,

v.

THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY

RESPONDENT

UNOPPOSED MOTION FOR ENLARGEMENT OF TIME

Pursuant to 46 C.F.R. § 502.102, Complainant Maher Terminals, LLC (“Maher”) respectfully requests an enlargement of time: (1) to file its Exceptions to the Presiding Officer’s April 25, 2014 Initial Decision (“Initial Decision”); and (2) for the Port Authority of New York and New Jersey (“Port Authority”) to file its Reply to Maher’s Exceptions, beyond the usual 22 days provided for under 46 C.F.R. § 502.227(a)(1). Under this proposed schedule, Maher’s Exceptions would be due June 9, 2014, and the Port Authority’s Reply thereto would be due July 23, 2014. The Port Authority has consented to the foregoing request and has therefore authorized Maher to state that this Motion is unopposed.

Additional time is warranted in this instance because of the significance of the important issues and the large scope of the merits record in this proceeding. Also, counsel for Maher has previously-scheduled conflicting professional obligations that entail extensive travel and an out-of-state court appearance before the United States Court of Appeals for the Fifth Circuit for the

lead partner and personal conflicts that include another key partner's anticipated absence due to the imminent birth of his child.

As shown above, there are "exceptional circumstances" warranting an enlargement of the time the Parties have to file their respective papers from 22 days to 44 days. Therefore, Maher's deadline to file its Exceptions to the Initial Decision should be extended from May 19, 2014 to June 9, 2014, and the Port Authority's deadline to file its Reply to Maher's Exceptions should be extended from June 9, 2014 to July 23, 2014.

Dated: April 28, 2014

Respectfully submitted,



Lawrence I. Kiem
Bryant E. Gardner
Gerald A. Morrissey III
Rand K. Brothers
WINSTON & STRAWN LLP
1700 K Street, N.W.
Washington, D.C. 20006

Attorneys for Maher Terminals, LLC

CERTIFICATE OF SERVICE

I hereby certify that on this 28th date of April, 2014, a copy of the foregoing was served
by electronic mail on the following:

Peter D. Isakoff
Holly E. Loiseau
WEIL, GOTSHAL & MANGES LLP
1300 Eye Street, NW
Suite 900
Washington, DC 20005

Richard A. Rothman
Kevin F. Meade
Robert S. Berezin
Kristen M. Echemendia
WEIL, GOTSHAL & MANGES LLP
767 Fifth Avenue
New York, NY 10153

Ashley W. Craig
Elizabeth K. Lowe
Sarah Choi
Venable LLP
575 7th Street, NW
Washington, DC 20004



Rand K. Brothers